

benefits every time an independent dealership sells or leases one of its vehicles; the dealership *intended to* benefit Defendant by expressly naming it; and the Plaintiffs knew or reasonable could have known that the arbitration was intended to benefit it.

18. *Curiel v. Motivational Marketing LLC, et al*, Case No. CIVSB2310932
Plaintiff's Motion for Preliminary Approval of Class Action Settlement
5/12/26, 1:30 p.m., Dept. S-17

The Court would **CONTINUE** the matter to allow for a Second Amended Complaint to add Ivette Aguilar as a named Plaintiff.

Initially, Ivette Aguilar filed a separate action (CIVSB2317884). Here, the settlement agreement and motion seek to have her named as a Representative Plaintiff in this separate proceeding filed by Plaintiff Curiel (CIVSB2310932). However, Aguilar is *not* a named plaintiff in this matter.

Notably, a First Amended Complaint (FAC) was filed on April 3, 2024, to expand the claims to include a Private Attorneys General Act (PAGA) cause. However, the FAC *failed* to add Aguilar as a named Plaintiff. The Court declines to add Aguilar as a named Plaintiff here *sua sponte*, and it would continue the matter to allow a Second Amended Complaint naming Aguilar.
